

at least two months before the time named in such notice for the hearing of the appeal. Such petition shall not be answered, but at the time named in such notice the parties must attend to argue the appeal; and upon the filing of petition and service of a copy thereof, and of such notice, the appeal shall stand in the same plight as if the petition had been answered and such time appointed by this Court for the hearing thereof.

No answer.

The Schedule to the foregoing Order.

In the Court of Error and Appeal.

Between

Appellant,

and

Respondent.

To the Honourable the Judges of the said Court,

The humble Petition of the said (Appellant)

Form of
Petition.

Sheweth :

That a (Decree or an Order) was lately and on
pronounced by Her Majesty's
Court of Chancery for Upper Canada in a certain cause
depending in the said Court, wherein your petitioner was
and the above named
was

which said (Decree or Order) has
since been duly entered and enrolled.

That your petitioner feels himself aggrieved by the said
(Decree or Order), and he hereby appeals therefrom, and
humbly prays that the same may be reversed or varied, or
that your Lordships will make such other Order or Decree
in the premises as to your Lordships shall seem meet.

And your petitioner will ever pray, &c.

(Certificate of Counsel.)

The printed "Case," which is done away with by the
following Order, consisted of a statement of the proceed-
ings had in the Court below. The Appendix, which is
still to be used as the "Case," is a copy of the pleadings
and evidence. This will be much shorter than formerly,
in consequence of the new Rules shortening the pleadings
in Chancery.

That the printed Cases shall be and are hereby abolish-
ed, but copies of the pleadings and evidence shall be
printed as is at present done in the Appendix to the Case,
to which the Reasons of Appeal and for supporting the
Decree or Order shall be appended; and the same rules
shall apply to such printed copies and reasons as now
apply to the printed cases, and the same shall for all pur-

XXX.
Printed Cases
abolished.